

25VECV02309 25VECV02309

County: los-angeles

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Case Number: 25VECV02309 Hearing Date: September 3, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Miles Basurto,

Plaintiff,

v.

Southern California
Volleyball Association (SCVA)

Defendant.

Case Number Department

25VECV02309 107

COURT'S [TENTATIVE]
ORDER RE:

Motion for Summary Judgment

or in the Alternative Summary

Adjudication

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

April 13, 2025, Plaintiff Miles Basurto ("Plaintiff") attended his daughter's volleyball tournament. (First Amended Complaint ["FAC"] ¶ 8.) "After a match, Plaintiff privately told his daughter she had a bad attitude, saying 'your attitude was bullshit,' in a father-daughter moment of feedback. No threats were made. A Site Director, without identifying himself, accused Plaintiff of threatening behavior and demanded he leave." (FAC ¶ 9.) On April 14, 2025, Defendant Southern California Volleyball Association (SCVA) ("Defendant") issued Plaintiff a suspension letter which banned Plaintiff from Defendant's events until June 30, 2025. (FAC ¶ 11.)

On

April 25, 2025, Plaintiff filed a complaint against Defendant and Does 1 through 10, alleging causes of action for: (1) violation of civil rights – California Constitution Article I, section 7; (2) defamation; (3) racial discrimination – Unruh Civil Rights Act (California Civil Code section 51); (4) intentional infliction of emotional distress; and (5) declaratory and injunctive relief.

On

May 1, 2025, Plaintiff filed a first amended complaint against Defendant and Does 1 through 10, alleging causes of action for: (1) violation of California Constitution Article I, section 7 (due process) (2) defamation; (3) violation of Unruh Civil Rights Act (Civil Code section 51); (4) intentional infliction of emotional distress; and (5) declaratory and injunctive relief.

On

September 25, 2025, Defendant filed a motion for summary judgment or in the alternative summary adjudication of the issues as to Plaintiff's first amended complaint (the "First Motion"). On March 18, 2026, the court denied the motion for summary judgment and the motion or summary adjudication as to the third

cause of action for Violation of Unruh Civil rights Act (Civil Code section 51) and fifth cause of action for declaratory and injunctive relief. (03/18/26 Minute Order p. 10.) The court granted the motion for summary adjudication as to the first cause of action for violation of California Constitution Article I, section 7 (due process), second cause of action for defamation, and fourth cause of action for intentional infliction of emotional distress. (03/18/26 Minute Order p. 10.)

On

April 13, 2026, Defendant filed another motion for summary judgment or in the alternative summary adjudication of the issues as to Plaintiff's first amended complaint (the "Motion"). As of August 28, 2026, no opposition has been filed.

II.

DISCUSSION

Defendant

moves for summary judgment or, in the alternative, summary adjudication of the third and fifth causes of action. (Motion pp. 1-2.)

Code

of Civil Procedure section 437c, subdivision (a)(4) states "[a] party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding. This limitation does not apply to motions for summary adjudication."

Defendant

already brought one motion for summary judgment. Thus, Defendant is prohibited by Code of Civil Procedure section 437c, subdivision (a)(4) from bringing a second motion for summary judgment.

Code

of Civil Procedure section 437c, subdivision (a)(5) states:

Notwithstanding any

other provision of this section, on motion or application of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment. The moving party shall serve the notice and supporting papers for any such additional motion in accordance with paragraph (2) of subdivision (a).

Defendant

filed no motion seeking leave to bring an additional motion for summary judgment. Thus, this subdivision does not apply here.

Code

of Civil Procedure section 437c, subdivision (f)(2) states, in relevant part:

A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.

Defendant's

Motion is based upon the same issues asserted in the First Motion, which was denied by the court. (03/18/26 Minute Order p. 10.) Based on the court's review of the evidence, Defendant presents the following evidence with this Motion that was not included with the First Motion.

First,

Matt Levoe states in the submitted declaration that:

MILES BASURTO was not treated differently than other similarly situated parent because of his race. Specifically, MILES BASURTO was the only person at the aforementioned SCVA event that was reported to be engaged in inappropriate conduct; that I witnessed berating and cussing at his child in front of a crowd of people; and that was cursing at/threatening me.

If any other parent

had engaged in the aforementioned actions at the SCVA event, I would have undertaken the same actions that were taken against MILES BASURTO regardless of race.

(Levoe

Declaration ¶¶ 13-14.)

Second,

Steve Davis states in the submitted declaration that:

MILES BASURTO was not treated differently than other similarly situated parent because of his race. Specifically, MILES BASURTO was the only person at the aforementioned SCVA event that was reported to be engaged in inappropriate conduct; reported to be berating and cussing at his child in front of a crowd of people; and reported to be cursing at/threatening anyone at the SCVA event.

If any other parent had engaged in the aforementioned actions at the SCVA event or any other SCVA event, SCVA would have undertaken the same actions that were taken against MILES BASURTO regardless of race.

(Davis Declaration ¶¶ 10-11.)

Defendant also submitted declarations by Levoe and Davis with the First Motion. Defendant does not argue the evidence cited above are newly discovered facts or circumstances. The court fails to see how the statements quoted above are newly discovered facts or circumstances. Thus, Defendant has not established newly discovered facts or circumstances or a change of law.

III.

CONCLUSION

For the foregoing reasons, the Motion is denied.

Dated: September 3, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court